

reconsideration of that transfer has been denied, judicial economy is best served by consolidating the two cases as they concern the same contract, same parties (with the exception of the addition of Defendant Carolyn Lehman in C25-02968), and the same events.” (*Id.*, at pp. 1-2.)

The Court notes that the two matters sought to be consolidated have nearly identical parties, with the addition of Carolyn Lehman in the unlimited civil action. The two cases also both involve the same lease and the same issue as to whether the Property was uninhabitable or not. These all support consolidating the cases.

Further, according to Code of Civil Procedure section 116.390, subdivision (c), “[i]f the small claims action is transferred prior to judgment, both actions shall be tried together in the transferee court.” Thus, because the small claims matter has already been transferred pursuant to Code of Civil Procedure section 116.390, this also supports consolidation of the matters.

Ruling

Moving Parties’ motion to consolidate is **GRANTED**. The actions are consolidated for all purposes pursuant to Code of Civil Procedure section 1048, subdivision (a).

14. 9:00 AM CASE NUMBER: C25-03089
CASE NAME: ROSE MARIE CUTINO VS. SERVICE FINANCE COMPANY, LLC
***HEARING ON MOTION IN RE: TRIAL PREFERENCE**
FILED BY: CUTINO, ROSE MARIE
TENTATIVE RULING:

Plaintiff Rose Marie Cutino (“Plaintiff” or “Cutino”) moves for an order granting a preferential trial date in this action, pursuant to Code of Civil Procedure section 36, subdivision (a), for trial within 120 days from the date of this hearing. Defendant Service Finance Company, LLC (“Defendant” or “SFC”) opposes the motion in part.

For the following reasons, the motion is **DENIED**.

Legal Standard

“A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) [t]he party has a substantial interest in the action as a whole[; and] (2) [t]he health of the party is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (Code Civ. Proc., § 36, subdivision (a).)

A motion made under Section 36(a) “may be supported by nothing more than an attorney’s declaration ‘based upon information and belief as to the medical diagnosis and prognosis of any party.’ [Citation.]” (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 534, citing Code Civ. Proc., § 36.5 [“[a]n affidavit in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the

medical diagnosis and prognosis of any party”].) The affidavit may also consist entirely of hearsay and conclusions. (*Id.*)

If the court makes the requisite finding of fact on a motion for preference under Code of Civil Procedure section 36, subdivision (a), it has no discretion to deny the motion due to the use of the word “shall” in the statute. (See *Peters v. Superior Court* (1989) 212 Cal.App.3d 218, 224-25; see also *Rice v. Superior Court* (1982) 136 Cal.App.3d 81, 89-94.) “Failure to complete discovery or other pre-trial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference under subdivision (a) of section 36.” (*Swaithes v. Superior Court* (1989) 212 Cal.App.3d 1082, 1085.) “The trial court has no power to balance the differing interests of opposing litigants in applying the provision.” (*Ibid.*)

Analysis

With respect to Plaintiff Rose Marie Cutino, the Court finds that she is over 70 years of age and has a substantial interest in the action as a whole. However, she has not established that her health is such that a preference is necessary to prevent prejudicing his interest in the litigation. The declaration of Kristin Kemnitzer in support of Plaintiff’s motion states that she has “been made aware of Plaintiff’s age and certain medical conditions” and that “Plaintiff is a two-time cancer survivor” and several years ago she was hospitalized due to congestive heart failure. She also states that Plaintiff has limited mobility and requires a walker to walk. These assertions, however, do not provide a factual basis for the Court to find that her health is such that a preference is necessary; it does not connect Plaintiff’s health issues with the potential prejudice to the litigation. There is no suggestion that Plaintiff’s health issues will interfere with her abilities to participate in the trial or otherwise prosecute her case.

The standard to apply when assessing a motion under section 36, subdivision (a), was addressed in *Fox v. Superior Court*. “The issue under subdivision (a) is not whether an elderly litigant might die before trial or become so disabled that she might as well be absent when trial is called. Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that that party’s ‘health ... is such that a preference is necessary to prevent prejudicing [her] interest in the litigation.’ (Italics added.).” (*Fox v. Superior Court, supra*, 21 Cal.App.5th at p.534.) Plaintiff has not made this showing.

Notwithstanding the foregoing determination, the Court has already given significant and due consideration to the concerns regarding the plaintiff’s age and the desire to move this case forward with all deliberate speed. At the case management conference on April 16, 2026, the Court set a jury trial for October 26, 2026 at 10 a.m. and advanced the date for the demurrer hearing referenced in Defendant’s opposition and made other procedural rulings in an effort to substantially streamline the life cycle of this case. As a consequence, the current trial date in the matter is not far beyond the 120-day trial setting to which Plaintiff would be entitled if she were to establish a basis for the statutory trial setting preference.

15. 9:00 AM CASE NUMBER: MSC20-01624
CASE NAME: RAFAY VS FCA US, LLC
*HEARING ON MOTION IN RE: ATTORNEYS' FEES, COSTS, AND EXPENSES
FILED BY: RAFAY, RAYAN
TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to **June 15, 2026, 9:00 am in Department 34.**

16. 9:00 AM CASE NUMBER: N23-1456
CASE NAME: PETITION OF: CURIA GLOBAL, INC.
*HEARING ON MOTION IN RE: AMEND JUDGMENT TO ADD VAXANIX BIO LTD. AND VAXANIX BIO
ACQUISITION CORP. II AS JUDGMENT DEBTORS BY SUCCESSION
FILED BY:
TENTATIVE RULING:

Before the Court is Petitioner Curia Global, Inc.'s Motion to Amend Judgment to Add Vaxanix Bio Ltd. and Vaxanix Bio Acquisition Corp. II as Judgment Debtors by Succession.

Petitioner's Motion is **GRANTED** as set forth below.

Factual Background

Petitioner Curia Global, Inc. ("Curia") is a contract research and manufacturing organization that offers synthesis and contract manufacturing services for all phases of drug development. Respondent BryoLogyx, Inc. ("BryoLogyx") entered into a contract with Curia to provide such services. After a dispute arose between the parties, Curia initiated arbitration related to the dispute.

Curia ended up prevailing at the arbitration. Curia then moved to have the Court confirm the arbitration award. The Court confirmed the arbitration award. Curia now moves to amend the judgment to add Vaxanix Bio Ltd. ("Bio") and Vaxanix Bio Acquisition Corp. II ("Acquisition") (collectively the "Vaxanix Entities") due to the merger of BryoLogyx with Acquisition.

On or about January 28, 2024, BryoLogyx entered into an "Agreement and Plan of Merger" with Bio and Acquisition. (Tilghman Decl. Ex. A-6.) According to the Merger Agreement, the "[Bio], [Acquisition] and [BryoLogyx] intend to effect a merger of [BryoLogyx] with and into [Acquisition]..." (*Id.* at Recitals A.) The pertinent details of the merger will be discussed below.

The Vaxanix Entities object in part to the request. They argue that there is no basis to add Bio to the judgment but do concede that the Court can "amend the judgment to add only Vaxanix Acquisition [Corp. II]" to the judgment. Given that all parties agree that Acquisition ought to be added to the judgment, the Court will only address the arguments pertaining to the request to add Bio.

Standard

"Under [Code of Civil Procedure] section 187, the trial court is authorized to amend a judgment to add additional judgment debtors. ... As a general rule, 'a court may amend its judgment at any time so that the judgment will properly designate the real defendants....'" (*Danko v. O'Reilly* (2014) 232 Cal.App.4th 732, 735-36.) This sometimes occurs under an 'alter ego' theory. (*Ibid.*) "Modification of a